

Below is a **comprehensive petition/complaint scrutiny checklist** for police-station use. It is designed to identify missing information early so that FIR registration, investigation, charge sheet/final report, and trial evidence do not fail for avoidable gaps.

For current Indian cases, note that the **Bharatiya Nyaya Sanhita, Bharatiya Nagarik Suraksha Sanhita, and Bharatiya Sakshya Adhiniyam** came into force from **1 July 2024**, replacing IPC, Cr.P.C., and the Evidence Act for new cases, while older cases may still refer to IPC/Cr.P.C./Evidence Act. Under BNSS, information about a cognizable offence may be given orally or electronically, irrespective of where the offence occurred; it must be reduced to writing/read over/signed as applicable, and a copy must be given free to the informant or victim. Use this checklist **to enrich and test completeness**, not to delay registration where cognizable facts are disclosed.

Legend

E = Essential: absence may weaken FIR, investigation, remand, charge sheet, or trial.

G = Good to have: enriches the case, improves investigation, or helps anticipate defence.

N/A = Not applicable: record why it is not applicable.

Use four columns while checking a petition: **Question | Present? | Missing detail | Follow-up action/person responsible**.

1. Universal checklist for every complaint or petition

A. Receipt, jurisdiction, and basic FIR scrutiny

1. Does the complaint disclose facts suggesting a cognizable offence, even if the complainant has not mentioned legal sections? **E**
2. What is the date, time, and mode of receipt: written petition, oral statement, phone call, electronic complaint, email, WhatsApp, CCTNS, Dial 100/112, control room message? **E**
3. If oral, has it been reduced into writing, read over to the informant, and signed/thumb-marked? **E**
4. If electronic, has the informant been asked to sign/confirm within the legally required period? **E**

5. Is the place of occurrence inside this police station's limits? If not, has the matter still been recorded and routed/transfer action noted rather than rejected for jurisdiction? E
6. Is there urgency requiring immediate action before full details are collected: medical examination, rescue, search, scene preservation, arrest risk, evidence destruction, victim protection? E
7. Is there any delay between occurrence, discovery, and reporting? If yes, does the complaint explain the reason? E
8. Has the informant been given a free copy/acknowledgment of the recorded information? E
9. Is the complaint in the informant's own language? If translated, who translated it and was it read back? G
10. Is the complaint written by the victim/informant personally or by someone else? If someone else wrote it, why and who dictated the facts? G

B. Informant/complainant details

1. Full name, parentage/spouse name, age/DOB, gender, occupation, present address, permanent address, phone number, email, ID details? E
2. Relationship to the victim, accused, property, or incident? E
3. Is the informant an eyewitness, victim, hearsay witness, relative, neighbour, employer, officer, or anonymous source? E
4. If not an eyewitness, who gave the informant the information, when, where, and by what mode? E
5. Is the informant available for statement, identification, court attendance, and cross-examination? E
6. Does the informant require interpreter, special educator, disability assistance, woman officer, or privacy protection? E
7. Does the informant have any prior dispute, litigation, enmity, money dispute, political dispute, caste dispute, or family dispute with the accused? G
8. Has the informant already made any earlier complaint to police, elders, panchayat, employer, school, hospital, court, helpline, or online portal? Attach details. G

C. Victim details

1. Who is the victim: name, age/DOB, gender, address, contact, occupation/school, guardian details? E
2. Is the victim the complainant? If not, why is the victim not giving the complaint directly? E
3. Is the victim a child, woman, senior citizen, disabled person, mentally ill person, migrant, homeless person, SC/ST member, foreign national, or otherwise vulnerable? E
4. Is the victim currently safe? Where is the victim now? Who is with the victim? E

5. Is immediate medical examination needed? Has the victim already taken treatment? From which hospital/doctor? E
6. Are injuries, pain, bleeding, unconsciousness, intoxication, pregnancy, mental trauma, or threat to life mentioned? E
7. If the victim is a child or sexual-offence survivor, are identity details protected in outward-facing documents and media handling? E
8. Does the petition mention the victim's exact first disclosure: to whom, when, where, and in what words? E
9. Does the victim need shelter, counselling, escort, interpreter, legal aid, compensation, witness protection, or child welfare support? G

D. Accused/suspect details

1. Is the accused known, unknown, partly known, or suspected? E
2. Full particulars: name, alias, parentage, age, gender, occupation, address, phone number, email, social-media handles, ID numbers, vehicle number? E
3. Physical description if unknown: height, build, complexion, clothes, marks, language, accent, vehicle, direction of movement? E
4. Relationship with victim/informant: neighbour, family member, employer, friend, teacher, landlord, tenant, driver, online contact, unknown person? E
5. How does the informant identify the accused? Personal knowledge, CCTV, phone number, social-media profile, vehicle, witness, document, prior transaction? E
6. Are there co-accused, helpers, instigators, abettors, conspirators, vehicle owners, account holders, SIM holders, device users? E
7. What specific role is attributed to each accused? Avoid group allegations without individual acts unless common intention/common object is clearly described. E
8. Does the complaint mention motive, previous threat, prior incident, dispute, preparation, planning, or opportunity? G
9. Is the accused likely to abscond, threaten witnesses, destroy evidence, repeat offence, or influence victim? What facts support this? G

E. Incident essentials: who, what, when, where, how, why

1. Exact date and time of occurrence, or best-known time window? E
2. Exact place: full address, house number, room/floor, lane, landmark, shop name, school, office, bus stop, GPS/location if possible? E
3. Was the place public/private? Who owns it? Who occupies it? Who else was present? E
4. Chronological sequence: what happened first, next, and last? E
5. Exact words spoken by accused/victim/witnesses where legally relevant: threats, caste words, demand, abuse, inducement, promise, extortion, consent/refusal, confession-like statements? E
6. What physical acts were done by each accused? E

7. Was force, threat, deception, intoxication, confinement, weapon, restraint, inducement, or pressure used? E
8. What loss, injury, death, assault, fear, property damage, humiliation, or financial harm occurred? E
9. How did the victim escape, get rescued, reach home, hospital, or police station? E
10. Are there inconsistencies within the complaint about time, place, accused role, route, witnesses, or injury? E
11. Does the complaint distinguish what the informant personally saw from what was told by others? E
12. Is there any explanation for why expected witnesses did not see/hear the incident? G

F. Scene of offence and local surroundings

1. Is the exact scene identifiable without ambiguity? E
2. Are house numbers, shop names, room numbers, floors, entry/exit routes, and adjoining properties clear? E
3. Who was present in the premises: family members, tenants, staff, neighbours, customers, guards, bystanders? E
4. Are the owner, tenant, occupier, CCTV owner, security guard, shopkeeper, or local resident identified? E
5. Are lighting, traffic, crowd, visibility, noise, access control, locked/unlocked doors, and distance from witnesses mentioned? G
6. Was the scene disturbed before police arrived? Who touched, moved, cleaned, removed, washed, repaired, or disposed of anything? E
7. Are photographs, video, CCTV, sketch, map, or landmarks available? G

G. Delay, first disclosure, and post-incident conduct

1. When did the offence occur? When did the victim/informant first learn of it? When was police informed? E
2. Reason for delay: fear, threat, injury, family pressure, lockdown, social stigma, distance, hospitalisation, search effort, lack of transport? E
3. Who was the first person informed by the victim? What exactly was said? E
4. Who accompanied the victim/informant to police/hospital? G
5. Were there discussions with family, elders, accused, panchayat, employer, school, or mediator before complaint? G
6. Was any settlement, apology, repayment, threat, counter-complaint, or pressure attempted? G

H. Witnesses

1. **Direct eyewitnesses:** names, addresses, phone numbers, what each saw/heard. E
2. **First-disclosure witnesses:** who was told first and when. E
3. **Last-seen witnesses:** who last saw victim/deceased/property with accused. E
4. **Circumstantial witnesses:** motive, preparation, movement, recovery, possession, prior threats, post-offence conduct. E
5. **Documentary/digital witnesses:** bank officials, CCTV owners, mobile/device owners, platform admins, school authorities, hospital staff. E
6. **Independent local witnesses:** neighbours, shopkeepers, guards, passers-by, vehicle drivers. G
7. **Are any witnesses vulnerable to pressure or likely to turn hostile? Is early Magistrate statement required?** G
8. **Are all material witnesses named in the complaint or at least traceable?** E

I. Physical, documentary, medical, and digital evidence

1. **What physical evidence exists:** weapon, clothes, blood, hair, semen, saliva, broken articles, documents, tools, vehicle, stolen property, packaging? E
2. **Who currently possesses each item? Has it been washed, altered, used, deleted, repaired, moved, or disposed of?** E
3. **Does the complaint identify documents:** bills, receipts, title deeds, agreements, certificates, medical records, school records, caste certificates, bank statements, photos? E
4. **Does it mention digital evidence:** CCTV, phone calls, chats, WhatsApp, ShareChat/Instagram/Facebook, email, UPI, bank transaction IDs, GPS, tower location, audio/video recordings? E
5. **For digital evidence, are device details available:** phone make/model, IMEI, SIM number, user, owner, password/access, platform ID, URL, screenshot date/time? E
6. **Who created, stored, forwarded, downloaded, or produced the digital record?** E
7. **Is a preservation request needed for CCTV, CDR/IP logs, platform data, bank logs, cloud accounts?** E
8. **For electronic records, has the source device, hash/certificate requirement, and chain of custody been planned?** E Electronic/digital records have legal effect subject to BSA Section 63 conditions, and the certificate should identify the record, device, production manner, and relevant particulars; the statutory schedule also records device/source details and hash values.

J. Medical and forensic requirements

1. **Is medical examination required for victim, accused, deceased, or injured person?** E
2. **Has MLC number, hospital, doctor, date/time of examination, injuries, samples, treatment, and opinion been recorded?** E
3. **Are clothes/samples collected before washing/change, where possible?** E

4. **Are FSL-relevant items identified and preserved separately with proper sealing and labels? E**
5. **For offences punishable with seven years or more, has forensic scene visit/videography been considered as required under BNSS implementation? E**
BNSS Section 176 provides for prompt investigation steps and, for offences punishable with seven years or more, forensic expert scene visit and videography, subject to notified implementation/facility availability.
6. **Is the forensic question clear: blood group/DNA, fingerprints, semen, poison, weapon match, handwriting, digital extraction, hash, authenticity? G**

K. Legal ingredient check

For every proposed section, ask:

1. **What fact proves the identity of accused? E**
 2. **What fact proves the act/omission? E**
 3. **What fact proves intention, knowledge, motive, common intention, conspiracy, abetment, or common object, where required? E**
 4. **What fact proves victim status: age, caste, gender, public servant, relationship, ownership, possession, lawful custody? E**
 5. **What fact proves jurisdiction and place of offence? E**
 6. **What fact proves injury/loss/death/property value? E**
 7. **What independent corroboration exists or can be collected? G**
 8. **What likely defence will arise: false implication, consent, alibi, civil dispute, delay, wrong house number, no motive, hostile witnesses, no age proof, no ownership proof, no digital certificate? G**
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2. Crime-specific add-on questions

A. Missing person, kidnapping, abduction, elopement, trafficking

1. **Full missing person profile: age/DOB, photo, height, complexion, clothes, marks, language, mental/medical condition. E**
2. **Last seen: date, time, place, by whom, with whom, doing what? E**
3. **When was absence first noticed and by whom? E**
4. **What items are missing: clothes, phone, SIM, cash, documents, jewellery, vehicle, passport? E**
5. **Phone numbers, IMEI, social-media handles, recent calls/chats, online contacts? E**

6. Any suspected person, relationship, inducement, threat, promise of marriage/job, ransom demand, prior attempt to run away? E
7. Places searched and relatives/friends contacted? G
8. If the person returns or is traced: route, transport, places stayed, persons met, sexual assault, confinement, coercion, expenditure, phone used, witnesses at each place. E
9. For trafficking: recruitment, transport, harbouring, payment, exploitation purpose, intermediaries, documents seized, other victims. E

B. Sexual offences involving adult victims

1. Exact act described in the victim's own words; avoid vague terms alone. E
2. Date/time/place and whether repeated incidents occurred. E
3. Facts showing absence of consent or vitiated consent: force, threat, intoxication, fear, deception, authority, promise, blackmail, incapacity. E
4. Prior relationship, communications, meeting plan, how victim reached/left scene. E
5. Injuries, pain, bleeding, pregnancy, medical treatment, clothes worn, washing/bathing/change of clothes. E
6. First disclosure witness and delay explanation. E
7. Digital evidence: chats, calls, photos, videos, location, hotel/vehicle records. E
8. Immediate safety risk, threat, blackmail, need for protection. E
9. For woman complainants alleging specified sexual offences, has statement recording by a woman police officer/woman officer been ensured? E BNSS Section 173 contains specific recording requirements for women complainants in listed offences.

C. POCSO / child sexual offence

1. Age proof: school DOB certificate/matriculation record; if unavailable, municipal/panchayat birth certificate; if unavailable, medical age determination. E JJ Act Section 94 sets this hierarchy for age determination.
2. Child's statement recorded at residence/usual place/place of choice, preferably by woman police officer not below SI, not in uniform? E
3. Was the child kept away from accused during examination/investigation? E
4. No night detention at police station? E
5. Trusted person/parent/guardian present? Interpreter/special educator if needed? Audio-video recording where possible? E
6. Medical examination by woman doctor where victim is a girl child, in presence of parent/trusted person or nominated woman? E POCSO Sections 24 to 27 specify these child-sensitive statement and medical safeguards.
7. Exact first disclosure: to whom, when, words used, symptoms like pain/fever/fear. E

8. **Grooming facts: gifts, money, food, online contact, repeated visits, isolation, prior touching, threats. E**
9. **Who was present in/near the place: family members, tenants, wife/husband of accused, shopkeeper, neighbours, schoolmates? E**
10. **Has a Magistrate statement been requested promptly? E**
11. **Has identity of child been protected in documents/media/public copies? E**

D. SC/ST Prevention of Atrocities cases

1. **Victim's caste/tribe certificate or reliable basis for SC/ST identity. E**
2. **Accused's caste/community and whether accused is not SC/ST where relevant. E**
3. **Did the accused know the victim belonged to SC/ST? What facts show knowledge: same village/locality, prior dealings, words used, public identity, documents, relationship? E**
4. **Was offence committed because of caste/tribe, or with knowledge of victim's SC/ST status where the section requires it? E**
5. **Exact caste words, insults, threats, social/economic boycott, obstruction, land/property interference, humiliation, place of occurrence. E**
6. **Was it in public view? Who heard/saw? E**
7. **Immediate relief, protection, rehabilitation, intimidation of witnesses, and special court/prosecutor requirements. E**
8. **Has the correct investigation rank/appointment procedure under local practice and applicable rules been checked? E** Section 3(2)(v) covers certain serious IPC offences against a person/property where the accused knows the person is SC/ST or property belongs to such member.

E. Murder, suspicious death, attempt to murder, grievous hurt

1. **Is the victim alive, injured, dead, missing, unconscious, or hospitalised? E**
2. **Who first found the body/injured person, when, and where? E**
3. **Last seen with whom, at what time and place? E**
4. **Exact injuries observed, weapon used, number of blows, body part targeted, medical/PME details. E**
5. **Motive: enmity, relationship, money, land, caste, revenge, jealousy, prior threat. Who can prove it? E**
6. **Accused presence, route, vehicle, clothes, weapon, escape direction. E**
7. **Scene details: blood spots, drag marks, CCTV, lighting, crowd, entry/exit, owner/tenant, other occupants. E**
8. **Dying declaration, last call, emergency call, hospital statement. E**
9. **Recovery evidence: weapon, clothes, vehicle, phone; where seized; public/private place; FSL/DNA/blood group linkage. E**

10. Have all eye witnesses and material circumstantial witnesses been secured early, and is Magistrate statement needed? G

F. Theft, house-breaking, burglary, robbery, dacoity

1. What property was stolen/damaged: full description, serial numbers, IMEI, marks, weight, value, photos, bills? E
2. Ownership/possession proof. E
3. Date/time of last seen safe and first noticed missing. E
4. Entry/exit method: lock broken, duplicate key, open door, window, roof, insider access. E
5. For robbery/dacoity: force, threat, weapon, number of accused, injuries, words used, property taken. E
6. CCTV, guards, neighbours, alarms, access logs, vehicle numbers. E
7. Suspects: employees, tenants, visitors, delivery persons, prior workers, known offenders. G
8. Insurance claim or prior dispute? G

G. Cheating, fraud, forgery, breach of trust, financial crime

1. What false representation was made? Exact words/document/message. E
2. When was it made, by whom, to whom, and by what medium? E
3. Why was it false at the time it was made? E
4. How did it induce the victim to deliver money/property/service or sign documents? E
5. Amount, dates, transaction IDs, account numbers, UPI IDs, wallet IDs, receipts. E
6. Documents forged or fabricated: original holder, who prepared, who signed, how discovered. E
7. Whether dispute is purely civil/contractual or contains dishonest intention from inception? Facts supporting criminality. E
8. Bank freeze request, beneficiary trail, KYC details, IP/device logs, CCTV at ATM/bank. E
9. Other victims or pattern of similar conduct. G

H. Cybercrime and digital harassment

1. Platform/app/site: URL, username, profile link, phone number, email, group name, handle, channel. E
2. Exact offending content: screenshot, video, post, message, date/time, sender/receiver, link. E
3. Has original digital content been preserved, not merely screenshots? E

4. Device used by complainant/victim and suspected accused; IMEI/SIM/account details. E
5. For financial cybercrime: transaction IDs, beneficiary accounts, wallet IDs, UPI IDs, bank complaint number, freeze request time. E
6. For impersonation: genuine profile and fake profile comparison, proof of identity misuse. E
7. For intimate images/blackmail: consent, threats, demand, circulation, recipients, platform reporting. E
8. For child sexual material: immediate preservation, removal request, victim safety, POCSO/IT Act angle. E
9. BSA Section 63 certificate/hash/source details planned for electronic evidence. E

I. Domestic violence, cruelty, dowry, matrimonial offences

1. Marriage details: date, place, registration, spouse details, current residence. E
2. Specific acts of cruelty/harassment: date, place, person, words, injuries, witnesses. E
3. Dowry/property demand: who demanded, what, when, how, before/after marriage, proof. E
4. Physical injuries, medical records, photos, MLC, prior complaints. E
5. Stridhan/property list: items, bills, current custodian, refusal to return. E
6. Children, custody, shelter, immediate protection needs. E
7. In-laws/relatives: individual roles, not vague omnibus allegations. E
8. Any mediation, panchayat, legal notice, protection order, maintenance case, divorce case. G

J. Criminal intimidation, extortion, stalking, harassment

1. Exact threat words and medium: in person, call, message, social media, letter. E
2. Date/time/place and witnesses. E
3. What was demanded: money, property, sexual favour, withdrawal of case, silence, marriage, job, vote? E
4. Why did the threat cause fear? Past violence, weapon, accused influence, repeated conduct. E
5. Evidence: call recording, CCTV, messages, witnesses, payment proof. E
6. Any immediate risk requiring protection or bond proceedings/preventive action. E

K. Road accident, hit-and-run, rash/negligent driving

1. Date/time/place, road name, direction of travel, weather, lighting, traffic. E
2. Vehicle numbers, type, colour, driver identity, owner, insurance, licence. E
3. Victim injury/death, hospital, MLC/PME, ambulance, first responder. E

4. How accident occurred: speed, wrong side, signal violation, drunk driving, overtaking, brake failure, pothole. E
5. Witnesses, CCTV, dashcam, traffic camera, GPS, vehicle damage, skid marks. E
6. Whether driver stopped, fled, helped, or concealed vehicle. E

L. Riot, unlawful assembly, group assault, communal/caste/public order offences

1. Number of persons, group identity, common object, slogans, weapons. E
2. Specific role of each identifiable accused. E
3. Trigger event, prior mobilisation, social-media posts, announcements, route. E
4. Injuries, property damage, shops/houses/vehicles affected. E
5. Independent witnesses, CCTV, drone/video, police deployment, prohibitory orders. E
6. Whether public servants were obstructed/attacked. E

M. Land/property trespass, criminal intimidation in civil disputes

1. Complainant's title/possession basis: sale deed, lease, pattadar passbook, municipal record, electricity bill, tax receipt, court order. E
2. Exact criminal act: trespass, damage, assault, threat, dispossession, lock breaking, fencing, crop cutting. E
3. Date/time, boundaries, survey number, house number, photographs, video. E
4. Accused claim, civil suit, stay order, revenue proceedings, prior police complaints. E
5. Witnesses to possession and incident. E
6. Distinguish civil dispute from criminal act with intention, force, threat, damage, deception, or unlawful entry. E

N. NDPS/contraband/special statute complaints

1. What substance/article is alleged, quantity, packaging, location, possessor, source information. E
2. Who saw possession, sale, transport, storage, or consumption? E
3. Vehicle, premises, owner/occupier, route, co-accused. E
4. Any video/photo, seizure possibility, safety risk, need for specialised team. E
5. Applicable special-procedure requirements under the statute/local SOP identified before action. E

O. Corruption/bribery/public servant complaint

1. **Name/designation/office of public servant or intermediary. E**
 2. **Official work pending and complainant's entitlement. E**
 3. **Exact demand: amount/benefit, date, place, words, mode. E**
 4. **Acceptance/payment attempt details, witnesses, recordings, messages. E**
 5. **Relevant file/application number, receipts, notices, prior interactions. E**
 6. **Need to involve competent anti-corruption authority as per jurisdiction. E**
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3. Court-proofing questions before treating the petition as complete

These questions are drawn from common trial failures seen in the uploaded case records and judgments.

1. **Can we prove the exact scene of offence without confusion about house number, room, floor, owner, tenant, or neighbouring portions?**
In one POCSO acquittal, the court noted uncertainty about the scene/house number and failure to examine persons present in the premises.
2. **Have all natural witnesses been identified and examined: wife/husband in the next room, tenants, neighbours, shopkeepers, guards, occupants, vehicle owner?**
Non-examination of natural witnesses can create doubt, especially when the alleged place is crowded or occupied.
3. **Is the first-disclosure chain consistent?**
Who did the victim tell first? Did that person's version match the victim's version?
Contradictions between victim, complainant, and intermediary witnesses are high-risk.
4. **If the victim is a child, is age proved by legally reliable documents, not merely a weak or unsupported certificate?**
In a POCSO acquittal, the court found the prosecution failed to prove the victim was below 18 where stronger birth records were not produced.
5. **If the case depends on travel/stay at another place, are route, transport, room owner, friend/host, tickets, CCTV, phone location, and local witnesses identified?**
In one case, the court found lack of corroboration that the victim and accused went to the alleged outside location/friend's room.
6. **If motive is alleged, can it be proved by witnesses/documents/digital records, not only police theory?**
In the murder case file, alleged motive based on an illicit relationship failed because supporting witnesses/documents/call or chat data were not proved.
7. **Are digital records actually collected, preserved, certified, and filed, not merely mentioned?**
CCTV or call/chat evidence referred to in investigation but not produced or certified may not help at trial.

8. **Are seized articles connected to the offence through FSL/DNA/blood group/fingerprint/device extraction, and is the chain of custody clear?**
In the murder judgment, the court noted problems including material objects not properly linked through forensic analysis and recovery from a public place.
 9. **Can each witness's expected evidence be stated clearly in the memo of evidence?**
Charge sheets in the uploaded files use witness tables showing who speaks about complaint, victim statement, medical examination, FSL, age/caste certificate, panchanama, arrest, and investigation; this should be prepared early, not at the end.
 10. **Is the case relying too heavily on confession/recovery without independent corroboration?**
Recovery, confession portions, and panch witnesses must be independently supportable; if panch witnesses turn hostile, other evidence should still sustain the case.
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4. Suggested “missing information” evaluation format

Use this short form after applying the checklist:

Complaint number / GD entry:

Date/time received:

Informant:

Victim:

Proposed offence category:

Cognizable facts disclosed: Yes / No / Unclear

Immediate FIR required: Yes / No / Already registered

Urgent action required: Medical / rescue / scene visit / CCTV preservation / arrest risk / protection / none

Area checked	Missing essential information	Why it matters	Follow-up action
Identity			
Time/place			
Accused role			
Witnesses			
Medical/FSL			

Digital evidence

Age/caste/ownership proof

Delay/first disclosure

Scene clarity

Legal ingredients

5. Final “FIR readiness” test

Before finalising, ask:

Can a person who knows nothing about the case read the complaint and answer: who did what, to whom, when, where, how, with what intention, with what injury/loss, witnessed by whom, supported by what evidence, and why police action is required now?

If the answer is “no,” the missing items should be recorded as follow-up points immediately after FIR registration or during the first statement/scene action, without coaching the complainant or delaying lawful registration.